

KMVTECH EDUCATION**HRL1 · Module 3****African system**

Lesson: African Charter and institutions

Student Lesson Notes

Study with the online lessons. Prefer primary sources (Constitution, statutes, treaties, cases). © KMVTECH Education · September 2026.

1. CORE IDEA

The African Charter on Human and Peoples' Rights (Banjul Charter) is the regional cornerstone. It protects individual rights, peoples' rights and imposes individual duties. The African Commission on Human and Peoples' Rights and the African Court on Human and Peoples' Rights are the main supervisory organs.

The Commission receives State reports, inter-State and individual communications, and undertakes promotional activities. The Court has contentious and advisory jurisdiction; access for individuals and NGOs depends on State declarations under Article 34(6) of the Protocol.

Other instruments include the Protocol on the Rights of Women in Africa, the African Charter on the Rights and Welfare of the Child, and specialised mechanisms.

- The African system emphasises amicable settlement, progressive realisation of certain rights, and the particularities of the African context.

2. DETAILED RULES AND APPLICATION

Example: a communication alleging violations of fair-trial or property rights must satisfy admissibility criteria (including exhaustion) before the Commission examines merits.

Always check whether Uganda has made the Article 34(6) declaration and what remedies the Commission or Court can usefully recommend.

3. UGANDA / PRACTICE, METHOD AND TRAPS

Uganda is a party to the African Charter and related protocols. Domestic courts and the Uganda Human Rights Commission increasingly cite African Commission jurisprudence. Strategic litigation may combine domestic and regional routes.

Exam trap: assuming every individual can file directly at the African Court without checking the Article 34(6) declaration, or ignoring the Commission's admissibility rules.

Method: locate the right in the Charter → check Commission/Court competence and access rules → assess exhaustion and other admissibility hurdles → design a dual domestic–regional strategy.

Complements the UN system and feeds domestic enforcement arguments.

SELF-TEST QUESTIONS

Attempt these before the platform practice quiz.

1. What three categories of rights/duties does the African Charter cover?
2. Distinguish the Commission from the Court.
3. What is Article 34(6) of the Court Protocol?
4. Name two additional African human-rights instruments.
5. Why does exhaustion matter before the Commission?
6. How can African jurisprudence assist Ugandan courts?

Exam tip: Check access rules before choosing the regional forum.

CHECKLIST BEFORE YOU LEAVE THIS LESSON

- I can state the main instrument(s) or Cap number.
- I can explain the core rule in my own words.
- I can apply the rule to a short Uganda / regional fact pattern.
- I know the common exam trap for this topic.
- I know how this lesson links to the next module.

Next step: Complete the online practice quiz for this lesson, then continue on the platform.